



2026:AHC:43885-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 8187 of 2026**

Smt. Habibunissa

.....Petitioner(s)

Versus

The State Of Uttar Pradesh And 2 Others

.....Respondent(s)

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|---------------------------|---|---------------------------|
| Counsel for Petitioner(s) | : | Asar Mukhtar, Ikram Ahmad |
| Counsel for Respondent(s) | : | C.S.C., Chetan Chatterjee |

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**Court No. - 1**

**HON'BLE AJIT KUMAR, J.**

**HON'BLE SWARUPAMA CHATURVEDI, J.**

1. Heard Sri Asar Makhtar, learned counsel for the petitioner, Sri Chetan Chatterjee, learned panel counsel for the respondent Nos.- 2 & 3 and Sri Sandeep Singh, learned Brief Holder appearing for the State respondent.
2. By means of this petition filed under Article 226 of the Constitution, petitioner has prayed for quashing of the notice dated 8th May, 2024 whereas he has been directed to file his reply/ objection for the electricity dues sought to be recovered from him.
3. Raising preliminary objection as to the maintainability of this petition, Sri Chatterjee, learned panel counsel for the respondent Nos. 2 & 3 submits that petitioner has an opportunity to file objection under the U.P. Electricity Supply Code, 2005, and the same shall be dealt with by the authority himself before passing the final assessment order. He further submits that till date no final assessment order has been passed.
4. In such above view of the matter, we direct the petitioner to file objection to the impugned notice dated 8th May, 2024 within four weeks from today and in the event he does so, the authority concerned shall be dealing with the objection and shall be passing final assessment order within a further period of one month.
5. With the aforesaid observations and directions, this petition stands

disposed of.

**February 26, 2026**  
Atmesh

**(Swarupama Chaturvedi,J.) (Ajit Kumar,J.)**